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Case Number: 26SMCV00769 Hearing Date: July 22, 2026 Dept: 205

Superior Court of
California

County of Los
Angeles – West District

Beverly Hills
Courthouse / Department 205

MARIAH MACHEFSKY,

Plaintiff,

v.

APYX MEDICAL CORPORATION, A FOREIGN FOR PROFIT CORPORATION,
f/k/a BOVIE MEDICAL CORPORATION, A FOREIGN FOR PROFIT CORPORATION, et al.,

Defendants.

Case No.: 24SMCV03200

Hearing Date: July 22,
2026

[TENTATIVE] ORDER

RE:

DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

BACKGROUND

This is a products liability and medical malpractice case. Defendant Apyx Medical Corporation f/k/a Bovie Medical Corporation ("Apyx") manufactured, marketed and sold the J-Plasma/Renuvion line of medical devices, which were sold to plastic surgeons. (First Amended Complaint, ¶ 55.) The devices were purportedly marketed for "off label uses" to help smooth and tighten loose skin. (FAC, ¶ 79.)

Defendant Feras Yamin is a plastic surgeon. (FAC, ¶ 7.) Plaintiff Mariah Machefsky met with Dr. Yamin to discuss "tummy tuck, high definition liposuction 360, breast augmentation, BBL, and renuvion." (FAC, ¶ 159.) Dr. Yamin told Plaintiff about J-Plasma/Renuvion and promised her it would give her "an extra defined look." (FAC, ¶ 160.) Dr. Yamin represented that the device was safe and that it would give her the look she was trying to achieve. (FAC, ¶ 161.)

On February 17, 2025, Plaintiff claims Dr. Yamin and his company, Defendant Feras Yamin Plastic Surgery ("FYPS") (collectively, "Yamin") pushed her to buy J-Plasma/Renuvion but failed to advise her of its potential risks. (FAC, ¶ 162.) Plaintiff alleges that Yamin was on notice because Yamin had injured no fewer than two (2) other prior patients through use of the same device. (FAC, ¶ 163.)

On March 14, 2022, the FDA issued a warning to both consumers and to health care professionals. (FAC, ¶ 141.) The FDA warned "against the use [of Renuvion/J-Plasma device by Apyx Medical] for procedures intended to improve the appearance of the skin through dermal resurfacing (a procedure on the skin to treat wrinkles) or skin contraction (a procedure under the skin that can be performed either alone or in combination with liposuction to achieve skin effects, such as "tightening")." (Ibid.)

The FDA warning stated that the device is "cleared for general use of cutting, coagulation, and ablation of soft tissue during open and laparoscopic surgical procedures. The use of this device has not been determined to be safe or effective for any specific procedure intended to improve the appearance of the skin." (Ibid.) The

FDA also advised that it “has received reports describing serious adverse events when the Renuvion/J-plasma device was used directly on the skin and potentially life-threatening adverse events when the Renuvion/J-plasma device was used under the skin.” (Ibid.)

The FDA provided the following recommendations to health care providers: “Be aware that the use of Renuvion/J-Plasma is not cleared or approved by the FDA for any aesthetic skin procedure; Be aware that the use of Renuvion/J-Plasma for aesthetic skin procedures may result in serious and potentially life-threatening adverse events; Do not use the Renuvion/J Plasma device for dermal resurfacing or skin contraction, alone or in combination with liposuction.” (Ibid.)

The FDA advised that it “received reports describing serious and potentially life-threatening adverse events after the device was used for aesthetic skin procedures. Reported events include second- and third- degree burns, infection, change in skin color, scars, nerve damage, significant bleeding, and air or gas accumulation under the skin, in body cavities, and in blood vessels. In some cases, adverse events required treatment in an intensive care unit (ICU).” (Ibid.)

On February 17, 2025, Yamin performed several procedures on Plaintiff using the Renuvion device: a tummy tuck, high-definition liposuction 360, breast augmentation, and BBL. (FAC, ¶ 167.) After the surgery, Plaintiff had “worsening enormous wounds, bleeding and infection in the areas for which Yamin performed surgery.” (FAC, ¶ 169.) Plaintiff also claims Yamin ruptured her breast implants. (FAC, ¶ 168.) Following the procedure, Plaintiff began “experiencing pain, severe anxiety, complications, and scarring,” but Yamin told her “that everything was normal.” (FAC, ¶¶ 170-171.) Plaintiff told Yamin her concerns with the wounds, but Yamin did not advise her that the J-Plasma/Renuvion device was “contraindicated” and did not disclose to her that the device was not safe. (FAC, ¶¶ 172-175.)

Plaintiff has also sued Apyx.

Plaintiff claims that Apyx lied to consumers that the product had zero “adverse events” or risks. (FAC, ¶ 97.) Plaintiff claims that Apyx used “these false, fraudulent, and unethical sales and marketing tactics” with Yamin. (FAC, ¶ 102.) Plaintiff claims that “when doctors began to see the tragic complications caused by the J-Plasma/Renuvion device, APYX/BOVIE would falsely inform the

doctors that the results were 'normal' and "not to worry" in an effort to delay claims being made." (FAC, ¶ 106.) Plaintiff claims that Apyx "was not candid with YAMIN and their companies FYPS and SOMA regarding the risks and benefits of the J Plasma/Renuvion device," but alternatively that if Apyx "was candid with YAMIN and their companies FYPS and SOMA about the unsafe risks, dangers, and harm posed by use of the J Plasma/Renuvion device, [] YAMIN and their companies FYPS and SOMA concealed those risks, dangers, and harm posed by use of the J-Plasma/Renuvion device from Plaintiff." (FAC, ¶¶ 146-147.)

This hearing is on Defendant Yamin's Demurrer to Plaintiff's FAC, filed on June 22, 2026. Yamin argues that Plaintiff's Intentional Infliction of Emotional Distress ("IIED") claim fails because Plaintiff has not alleged any extreme or outrageous conduct. This Court previously sustained Yamin's Demurrer to Plaintiff's Complaint as to the IIED claim because Plaintiff's allegations that she suffers from emotional distress and pain and suffering were found to be insufficient to plead the requisite severe emotional distress. (Minute Order, May 19, 2026.) Plaintiff filed an opposition on July 9, 2026. Yamin replied on July 13, 2026.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108

Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Yamin demurs to the fifth cause of action for IIED in Plaintiff’s FAC on the grounds that Plaintiff has not sufficiently pled facts establishing severe emotional distress.

“The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Wilson v. Hynek* (2012) 207 Cal.App.4th 999, 1009, cleaned up.)

A defendant’s conduct is considered to be outrageous if “it is so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051; see *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001; see also Rest.2d Torts, § 46, com. d, p. 73.) Liability for IIED does not extend to “mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” (*Hughes*, supra, 46 Cal.4th at 1051.) Malicious or evil purpose is not essential to liability for IIED. (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1045.)

California’s definition of “extreme and outrageous conduct” is based on comment d to section 46 of the Restatement Second of Torts. (See *Hughes*, supra, 46 Cal.4th at 1051.) Comment d to section 46 states: “Liability has been found only where the conduct has

been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community. Generally, the case is one in which the recitation of the facts to an average member of the community would arouse his resentment against the actor, and lead him to exclaim, 'Outrageous!'" (Rest.2d Torts, § 46, com. d, p. 73.)

Paragraphs 307 & 308 of the original complaint alleged:

"Among other things, conduct is also outrageous where it is false and given in bad faith, as the Defendants YAMIN, FYPS, and SOMA did here. They falsely and intentionally told Plaintiff use of the device was warranted, necessary, and safe, despite knowing it was not necessary, was not warranted, was not safe, and would cause harm, in bad faith. These statements and concealment of facts were knowingly false, the harm posed was known to them, yet they concealed it for financial gain, causing harm and damages to Plaintiff. This conduct was extreme and outrageous.

As a result of Defendants conduct as alleged in this complaint, Plaintiff was caused injuries and damages, including, but not limited to, pain and suffering, mental anguish and emotional distress as a direct result of, and proximately caused by, the intentional acts and omissions of DEFENDANTS, APYX, VAN SKIKE, YAMIN, FYPS, and SOMA."

(Complaint, ¶ 307-308.)

Paragraphs 303-306 of the amended complaint allege:

"Among other things, YAMIN, FYPS, and SOMA's conduct was extreme and outrageous, was knowingly false and given in bad faith, and they falsely and intentionally told Plaintiff use of the device was warranted, necessary, and safe, despite knowing it was not necessary, was not warranted, was not safe, and would cause harm, in bad faith. They concealed the knowledge it was known and would cause injury when used in the manner they recommended to Plaintiff, while concealing the known harm, and concealed they had severely injured prior patients using the and as a result of the device in the same or similar procedures. This conduct was knowingly false, the harm posed was known to them, yet they concealed it for financial gain, causing harm and damages to

Plaintiff, conduct which was directed at and in the presence of Plaintiff, and conduct engaged in knowing serious injury and harm would result.

This is extreme and outrageous conduct that exceeds the bounds of conduct tolerated in a civilized community.

As a result of Defendants conduct as alleged in this complaint, Plaintiff was caused injuries and damages, including, but not limited to, pain and suffering, mental anguish and emotional distress as a direct result of, and proximately caused by, the intentional acts and omissions of DEFENDANTS, APYX, VAN SKIKE, YAMIN, FYPS, and SOMA.

Plaintiff was caused severe emotional distress, depression, and other mental health maladies, and sustained and/or will sustain mental health treatment damages therefor.

Defendants, and each of them, know and knew that severe emotional distress is likely to and will result from physically scarring, injuries, and damaging patients in procedures using the device, as it is known that people like Plaintiff will be severely affected emotionally the disfigurement, unsightliness, and harm associated with aesthetic appearances involved in these procedures, yet Defendants, and each of them, knew Plaintiff and others like her would be harmed, maimed, and disfigured from use of the defective product, and that such harm causes severe emotional harm, just like Plaintiff has sustained in as a result here.

Plaintiff has thus sustained resultant severe emotional distress from the disfigurement, unsightliness, which necessitates mental health treatment as a result.”

(FAC, ¶¶ 303-308.)

As previously found in this Court's May Order, “[t]he Court cannot conclude at the pleading stage that a jury would not consider outrageous a doctor's use of a device he knew to be dangerous based on FDA warnings and his own prior experience with other patients. A jury could reasonably conclude that this action undertaken for the doctor's financial gain and at the expense of his patient was extreme and outrageous.” (Minute Order, May 19, 2026, p. 8.)

However, Plaintiff has not cured the identified deficiencies from the original complaint in her FAC and does not sufficiently allege severe emotional distress. As noted in this Court's previous order, "[w]ith respect to the requirement that the plaintiff show severe emotional distress, this court has set a high bar. Severe emotional distress means emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it." (Hughes, supra, 46 Cal.4th at 1051.) In Hughes, our Supreme Court affirmed the Court of Appeal's judgment in finding that "plaintiff's assertions that she has suffered discomfort, worry, anxiety, upset stomach, concern, and agitation" were insufficient to plead severe emotional distress. (Ibid.) Further, in Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, the Court of Appeal found that "Angie has pleaded no facts demonstrating the nature, extent or duration of her alleged emotional distress" sufficient to plead the severe emotional distress element. (Id., at 1227.) Here, similarly, Plaintiff's allegations that she suffers from "severe emotional distress, depression, and other mental health maladies, and [has] sustained and/or will sustain mental health treatment" does not meet the high bar for sufficiently pleading severe emotional distress. (FAC, ¶ 306.) Plaintiff's allegations in the FAC are very similar to her conclusory statements of suffering from "emotional distress" and "pain and suffering" that were found deficient in the previous demurrer to the original complaint. (Complaint, ¶ 308.)

Accordingly, the demurrer is sustained without leave to amend.

CONCLUSION AND ORDER

Based on the foregoing, the Court SUSTAINS Defendant Yamin's demurrer without leave to amend.

IT IS SO ORDERED.

DATED: July 22, 2026 _____

Edward
B. Moreton, Jr.

Judge

of the Superior Court